

1 _____ JOINT RESOLUTION NO. _____
2 INTRODUCED BY _____

4 A JOINT RESOLUTION OF THE SENATE AND THE HOUSE OF REPRESENTATIVES OF THE STATE OF
5 MONTANA CALLING ON CONGRESS TO REMOVE THE PENAL EXCEPTION CLAUSE IN THE
6 THIRTEENTH AMENDMENT OF THE CONSTITUTION OF THE UNITED STATES.

8 WHEREAS, the Constitution of the United States has prohibited slavery and involuntary servitude for
9 many, but not all, people in the United States since December 6, 1865; and

10 WHEREAS, the Thirteenth Amendment to the Constitution of the United States, which bars slavery and
11 involuntary servitude, includes an exception that allows for slavery and involuntary servitude to continue as
12 punishment for a crime; and

13 WHEREAS, the continued existence of slavery and involuntary servitude is antithetical to the values,
14 norms, and mores of the citizens of Montana; and

15 WHEREAS, our criminal justice system has the means to ensure people who have committed crimes
16 are appropriately sentenced without resorting to slavery or involuntary servitude.

18 NOW, THEREFORE, BE IT RESOLVED BY THE SENATE AND THE HOUSE OF REPRESENTATIVES OF
19 THE STATE OF MONTANA:

20 That the Montana Legislature calls upon Congress to amend the Constitution of the United States by
21 removing the language in the Thirteenth Amendment that states "except as a punishment for crime whereof the
22 party shall have been duly convicted."

23 BE IT FURTHER RESOLVED, that the Secretary of State send copies of this resolution to the Montana
24 Congressional Delegation.